

**BEFORE A
COMMISSION ON PROFESSIONAL COMPETENCE
LOMA PRIETA JOINT UNION SCHOOL DISTRICT
COUNTY OF SANTA CLARA
STATE OF CALIFORNIA**

In the Matter of the Dismissal of:

**DAVID KISSNER, A Permanent Certificated Employee,
Respondent.**

OAH No. 2021050291.1

DECISION AFTER REMAND

A Commission on Professional Competence (Commission) heard this matter by videoconference on October 4, 5, 6, 8, 11, 12, 13, 14, 15, 25, and 28, 2021. The Commission's members were Katherine Everett, Santa Clara County Office of Education; Scott Guagliardo, Downtown College Prep (San Jose); and Administrative Law Judge Juliet E. Cox, State of California, Office of Administrative Hearings, who presided.

Attorneys Brian D. Bock and Amanda S. Georgino represented the Loma Prieta Joint Union School District. Attorneys William J. Becker, Jr., and Jeremiah D. Graham represented respondent David Kissner, who was present throughout the hearing.

The Commission received oral opening statements, testimonial and documentary evidence (including audio and video recordings), and oral closing arguments. The record was held open to permit the Commission to review evidence

and to deliberate in executive session. The record closed and the matter was submitted for decision on November 10, 2021, at the conclusion of the Commission's deliberations. The Commission issued its decision on December 7, 2021.

The Santa Clara County Superior Court issued a Writ of Administrative Mandamus on October 11, 2024, to the Commission. This Writ directs the Commission to set aside its decision and to reconsider this matter in light of a Statement of Decision and Judgment entered by the Santa Clara County Superior Court on November 22, 2023. The Writ also directs a return from the Commission to the Santa Clara County Superior Court within 150 days after its service on the Commission.

The parties provided further written argument to the Commission. In addition, the complete evidentiary record from the October 2021 hearing, including transcripts, was available to the Commission for review, as were the Writ and the Statement of Decision and Judgment. Finally, the Commission heard oral argument on remand in this matter by videoconference on February 11, 2025.

The District requested that the Commission take notice of a decision from the United States Court of Appeals for the Ninth Circuit. Respondent opposed this request and asked the Commission to sanction the District. Both the request for official notice and the request for sanctions are denied.

On remand, attorneys Brian D. Bock and Mary Ellyn Gormley represented the District. Attorney William J. Becker, Jr., represented respondent David Kissner, who was present for the argument.

This matter was resubmitted for decision on remand on February 11, 2025.

FACTUAL FINDINGS

The Commission confirms its prior Factual Findings 1 through 75 and 85 through 108.

LEGAL CONCLUSIONS

1. The Commission confirms its prior Legal Conclusion 1.

2. The Commission confirms its prior Legal Conclusion 2. In accordance with the Writ of Administrative Mandate and with the Statement of Decision and Judgment, the Commission has disregarded its prior Factual Findings 28 through 45 and 76 through 79 in making its decision on remand in this matter.¹

Cause for Dismissal

3. The Commission confirms its prior Legal Conclusion 3.

PERSISTENT VIOLATION OF REGULATIONS

4–6. The Commission confirms its prior Legal Conclusions 4 through 6.

IMMORAL CONDUCT

7–8. The Commission confirms its prior Legal Conclusions 7 and 8.

¹ The Commission's prior Factual Findings 80 through 84 were not relevant to its original decision, and also are not relevant to this decision on remand.

EVIDENT UNFITNESS FOR SERVICE

9. The Commission confirms its prior Legal Conclusion 9.

10. The Commission must evaluate “unfitness,” in this context, with reference to several criteria, including likelihood and degree of adverse impact on students and fellow teachers, proximity or remoteness in time of the relevant conduct, extenuating or aggravating circumstances, praiseworthiness or blameworthiness of the teacher’s motives, and likelihood of recurrence. (*Morrison v. State Board of Education* (1969) 1 Cal.3d 214, 229-230.) In addition, the Commission must evaluate whether the conduct demonstrating unfitness “is caused by a defect in temperament.” (*Woodland Joint Unified Sch. Dist. v. Commission on Professional Competence* (1992) 2 Cal.App.4th 1429, 1445.) In light of the matters stated below in Legal Conclusions 11 through 19, the conduct described in Factual Findings 51 through 69 (refusing to follow Martin’s and Fraser’s directives, and teaching a course that was not in the District’s curriculum) and 71 through 75 (resisting both supervision and cooperation) establishes respondent’s evident unfitness for service.

Adverse Impact on Students and Fellow Teachers

11. The matters stated in Factual Findings 52 through 60 threatened significant adverse impact to students, who risked missing credit for a key course. The matters stated in Factual Findings 61 through 69 confirm that respondent brushed off warnings from Fraser regarding potential adverse effects on students from his “remote wilderness school camps.” Finally, the matters stated in Factual Findings 11, 12, 21, 22, 24, 25, and 74 show that respondent became notorious in the District’s small community because of his behavior, undermining his ability to cooperate with fellow teachers and with District administrators to serve students.

12. Although the evidence did not show actual, serious harm to students from respondent's behavior, the evidence overall showed that respondent created serious risks of such harm. Moreover, the rancor evident before the Commission did reflect damage to the District's educational community, and the matters stated in Factual Findings 11, 12, 18, 21, 22, 24, 25, and 74 show that respondent's conflict-seeking behavior was a significant cause of that damage.

Proximity or Remoteness in Time

13. The matters stated in Factual Findings 51 through 69, 71 through 75, and 98 through 101 confirm that conduct showing respondent's unfitness continued until and even after his suspension from duty.

Extenuating or Aggravating Circumstances

14–15. The Commission confirms its prior Legal Conclusions 14 and 15.

Respondent's Motives

16–17. The Commission confirms its prior Legal Conclusions 16 and 17.

Likelihood of Recurrence

18. The Commission confirms its prior Legal Conclusion 18.

Temperament

19. As summarized in Factual Findings 69, 72, 100, and 101, respondent expressed minimal remorse before the Commission for any of the conduct showing his unfitness for service. To the contrary, and as summarized in Factual Findings 14, 56, 74, 98, and 99, and in Legal Conclusions 20 through 23, respondent presented himself to

the Commission as someone who deserves respect for his moral courage but who instead faces persecution. These matters, all together, make respondent's unfitness evident.

Retaliation for Constitutionally Protected Activities

20–24. The Commission affirms its prior Legal Conclusions 20 through 24.

25. The totality of evidence in this matter does not establish an effort by the Board or by District administrators to discipline or to dismiss respondent because of his opinions or his political activity. To the contrary, all evidence in this matter shows that after significant conflict within the District in March and April 2018, the District in October 2018 offered respondent the opportunity to save face and move on. Respondent emphatically rejected this opportunity. Instead, between October 2018 and the hearing, respondent made repeated efforts to reopen and revisit the 2018 conflicts. He also responded to new potential and minor conflicts by amplifying them into major conflicts; and he became increasingly insubordinate and uncommunicative regarding school activities, even during the novelty and uncertainty of the COVID-19 pandemic.

26. The Commission considers the matters stated in Factual Findings 51 through 69 and 71 through 75, and in Legal Conclusions 9 through 19, to justify respondent's dismissal from employment, regardless of his opinions or his participation in political activity within the District.

27. The Commission confirms its prior Legal Conclusion 27.

ORDER

Respondent David Kissner is dismissed from his position as a permanent certificated employee of the Loma Prieta Joint Union School District due to evident unfitness for service.

DATE: 03/07/2025



JULIET E. COX

Administrative Law Judge

Office of Administrative Hearings

DATE: 03/05/2025



KATHERINE EVERETT, ED.D.

Commission Member

DATE: 03/07/2025



Scott Guagliardo (Mar 7, 2025 14:48 PST)

SCOTT GUAGLIARDO

Commission Member